(d) *Effective date of insurance applied for under section 621 of the National Service Life Insurance Act, and section 5 of the Servicemen's Indemnity Act of 1951 (Pub. Law 23, 82d Cong.).* * * *

(2) * * *

(i) As of any date within the 120-day period following separation from active service but in no event later than January 1, 1957: *Provided,* That if the application is for replacement of 5-year level premium term insurance which requires a physical examination report, and the effective date specified is more than 31 days after the date of the physical examination report, the applicant will be required to furnish a statement showing that he was in as good health on the effective date of the insurance as he was on the date of the physical examination report.

* * * * *

(Secs. 5, 10, 65 Stat. 34, 36, 37; 38 U. S. C. 821, 822, 854)

(Sec. 608, 54 Stat. 1012, as amended, sec. 6, 65 Stat. 35; 38 U. S. C. 808, 855. Interprets or applies sec. 602, 54 Stat. 1009, as amended; 38 U. S. C. 802)

This regulation is effective October 31, 1956.

[SEAL] H. V. HIGLEY,
Administrator of Veterans' Affairs.

[F. R. Doc. 56-8782; Filed, Oct. 30, 1956; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1352]

[109624]

CALIFORNIA

REVOKING EXECUTIVE ORDER NO. 1292 OF JANUARY 30, 1911, WHICH RESERVED RICHARDSON ROCK FOR LIGHTHOUSE PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 1292 of January 30, 1911, which reserved for lighthouse purposes, Richardson Rock, an unsurveyed island situated in the Pacific Ocean, off the coast of California, in approximate latitude 34°6' North, longitude 120°31'6'' West from Greenwich is hereby revoked.

The island is subject to Executive Order No. 5326 of April 14, 1930, which withdrew all unreserved islands, rocks and pinnacles situated in the Pacific Ocean, off the coast of California, for classification and in aid of legislation.

FRED G. AANDAHL,
Acting Secretary of the Interior.

OCTOBER 25, 1956.

[F. R. Doc. 56-8787; Filed, Oct. 30, 1956; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[27 CFR Part 5]

LABELING AND ADVERTISING OF DISTILLED SPIRITS

NOTICE OF HEARING

Notice is hereby given, pursuant to the provisions of section 5 of the Federal Alcohol Administration Act (49 Stat. 981 as amended; 27 U. S. C. 205), of a public hearing to be held,

On November 28, 1956, at 10 a. m., at Room 3313, Internal Revenue Building, Washington, D. C.

On December 5, 1956, at 10 a. m. at St. Francis Hotel, San Francisco, California,

at which times and places all interested parties will be afforded opportunity to be heard, in person or by authorized representative, with reference to the proposals, the substance of which is stated below, to amend Regulations No. 5 (27 CFR Part 5), relating to labeling and advertising of distilled spirits.

Written data, views or arguments relevant and material to these proposals may be submitted in duplicate for incorporation into the record of hearing (1) by mailing the same to the Director, Alcohol and Tobacco Tax Division, Internal Revenue Service, Washington 25, D. C., provided that they are received prior to the termination of the hearing, or (2) by presenting the same at the said hearing. Material relating to each proposal shall be submitted separately and shall bear the number of the proposal to which it relates. At the conclusion of the hearing a reasonable opportunity will be afforded interested parties for examination of the record and for the submission of briefs.

Substance of proposals:

1. To amend article I (27 CFR 5.1) to add a definition of domestic distilled spirits which would include imported cordials or liqueurs rectified in the United States by the addition of sugar or sugar and water solution.

2. To amend section 21, class 2 (27 CFR 5.21 (b)) and other pertinent sections of the regulations to increase the maximum proof at which whisky may be withdrawn from the cistern room at the distillery to a specified proof not higher than 160°, e. g., 120° proof; or, in the alternative, if the hearing does not develop sufficient data to provide for the normal barreling of whisky at a higher proof, to amend section 21, class 2 (27 CFR 5.21 (b)) and other pertinent sections of the regulations so as to provide that not more than 1,000 barrels of whisky barreled by a single distiller for experimental purposes at not more than 160° proof may be labeled, when bottled, under the designations which would have been applicable if the product had been withdrawn at not exceeding 110° proof.

3. To amend section 21, class 2 (h) (27 CFR 5.21 (b) (8)) and other pertinent sections of the regulations to eliminate the class and type designations "blended rye whisky" (rye whisky—a blend), "blended bourbon whisky" (bourbon whisky—a blend), "blended corn whisky" (corn whisky—a blend), "blended wheat whisky" (wheat whisky—a blend), "blended malt whisky" (malt whisky—a blend), and "blended rye malt whisky" (rye malt whiskey—a blend), so that these products would be designated "blended whisky" (whisky—a blend); or to amend section 21, class 2 (h) (27 CFR 5.21 (b) (8)) and other pertinent sections of the regulations to eliminate the alternative designations "rye whisky—a blend", "bourbon whisky—a blend", "corn whisky—a blend", "wheat whisky—a blend", "malt whisky—a blend", and "rye malt whisky—a blend"; or to amend section 32 (a) (27 CFR 5.32 (a)) and other pertinent sections of the regulations to require the brand labels for these products to bear, in addition to the class and type designation, a statement disclosing the presence of neutral spirits, if contained therein, e. g., "a blend of straight rye whisky and grain neutral spirits."

4. To amend section 21, class 2 (n) (27 CFR 5.21 (b) (14)) and other pertinent sections of the regulations to eliminate the class and type designation "blended Scotch type whisky" (Scotch type whisky—a blend).

5. To amend the first sentence of section 21, class 4 (a) (27 CFR 5.21 (d) (1)) by deleting the word "whole"; or, in the alternative, to amend section 21, class 4 (a) (27 CFR 5.21 (d) (1)) to permit fruit brandy to be distilled from the same materials that may be used to produce standard fruit wine.

6. To amend section 21, class 6 (a) (27 CFR 5.21 (f) (1)) to set a minimum alcoholic content for cordials and liqueurs, e. g. 42 proof.

7. To amend section 21, class 6 (a) (27 CFR 5.21 (f) (1)) to delete the words "to which sugar or dextrose or both have been added in an amount not less than 2½ percent by weight of the finished product.", and insert in lieu thereof the words "containing sugar or dextrose or both in an amount not less than 2½ percent by weight of the finished product."

8. To amend section 21, class 7 (c) (27 CFR 5.21 (g) (3)) to permit the use of crushed cherry pits without requiring the word "imitation" to appear as a part of the designation.

9. To amend section 30 (b) (2) (27 CFR 5.30 (b) (2)) to provide that no application for permission to relabel bottled distilled spirits need be made in any case where there is added to the bottle, after removal from Customs custody or from the bottling premises, a strip, shoulder, or other label bearing the name or name and address of the wholesaler or retailer, preceded by such phrases as "bottled for," "selected for," "made for," or "imported for," and containing no references whatever to the characteristics of the product.

10. To amend the proviso at the end of section 30 (b) (1) (27 CFR 5.30 (b) (1)) to read: "*Provided*, That the assistant regional commissioners, Alcohol and Tobacco Tax, or the storekeeper-gauger, if any, assigned to the premises may, upon written application, permit additional labeling or relabeling of bottled distilled spirits with approved labels for purposes of compliance with the requirements of this section or of State law or for commercial reasons."

11. To amend section 32 (a) (27 CFR 5.32 (a)) and other pertinent sections of the regulations to require the country of origin to appear on the brand label of all imported distilled spirits, whether imported in bottles or bottled after importation; or, in the alternative, to amend section 32 (27 CFR 5.32) and other pertinent sections of the regulations to require this information to appear on the brand or back label.

12. To amend section 32 (a) (27 CFR 5.32 (a)) and other pertinent sections of the regulations to provide, in the case of blends of straight whiskies designated to show the predominant type, such as "bourbon a blend of straight whiskies", for statement of the percentage of the predominant type of straight whisky contained in the product and the percentage of other straight whiskies on the brand label, instead of on the back label as is now required.

13. To amend section 32 (a) (27 CFR 5.32 (a)) and section 35 (b) (2) (27 CFR 5.35 (b) (2)) to authorize the use of a legend such as "Imported by and bottled in the United States for (followed by the name and address of the importer)" on distilled spirits bottled in the United States for the importer, in lieu of showing the name and address of the domestic bottler, and to require this information to appear on the brand label.

14. To amend section 32 (a) (27 CFR 5.32 (a)) to provide that the information required by section 35 (b) (2) and (3) (27 CFR 5.35 (b) (2) and (3)) relative to domestic bottling of imported distilled spirits must appear on the brand label, instead of on the brand or back label as now required.

15. To amend section 35 (27 CFR 5.35) so as not to require the State of distillation to appear on the Government label if this information appears in direct conjunction with the class (and type, if any) on the brand label.

16. To amend section 35 (a) (1) (27 CFR 5.35 (a) (1)) to provide that where distilled spirits are bottled by or for the distiller thereof there may be stated in lieu of the phrase "bottled by," followed by the bottler's name (or trade name) and the address, the phrase "distilled by," followed by the name (or trade name) under which the particular spirits were distilled; or (except in the case of distilled spirits bottled in bond under the provisions of section 5243, Internal Revenue Code—1954) any other name shown on the distiller's permit (covering the premises where the particular spirits were distilled), (a) at the time the spirits were distilled, or (b) at the time the spirits are bottled, or (c) at some specified time in the past, e. g., two years, irrespective of the name under which they were actually distilled, and the address (or addresses) of such distiller.

17. To amend section 36 (27 CFR 5.36) to eliminate the use of fractional proof statements; or, in the alternative, to amend this section to require fractional proof statements to be written out, e. g., "Eighty and six-tenths proof."

18. To amend section 37 (a) (27 CFR 5.37 (a)) to permit the net contents to be stated in fluid ounces in the case of containers of less than a pint; in pints and fluid ounces in the case of containers of more than a pint, but less than a quart; and in quarts, pints and fluid ounces in the case of containers of more than a quart, but less than a gallon.

19. To amend section 37 (c) (27 CFR 5.37 (c)) to permit the net contents to be blown, etched, sand-blasted, marked by underglazed coloring, or otherwise permanently marked by any method approved by the Director, in the sides, front, or back of bottles.

20. To amend section 39 (a) (3) (27 CFR 5.39 (a) (3)) to permit the use on the labels of blended whiskey of an age and percentage statement for the straight whiskey in the product, in substantially the following form: "____% straight whisky (straight whiskies), ____ years (or more) old", in lieu of the statements "The straight whisky in this product is ____ years old; ____% straight whisky" or "The straight whiskies in this product are _____ years or more old; ____% straight whisky" which are now required.

21. To amend section 39 (a) (4) (27 CFR 5.39 (a) (4)) to authorize the use, on the labels of "blends of straight whiskies", of an age statement substantially the same as, though not identical with, the statement now required.

22. To amend section 39 (e) (5) (27 CFR 5.39 (e) (5)) so as not to require the word "brand" to appear as a part of a brand name containing the word "old", or other word denoting age, on labels of whiskies and brandies that are not required to bear an age statement, and on the labels of rum which has been aged for not less than 4 years.

23. To amend section 39 (e) (5) (27 CFR 5.39 (e) (5)) to permit general inconspicuous age, maturity, or other similar representations on labels of rum, if the rum has been aged for not less than 4 years, even though the label does not bear an age statement.

24. To amend section 39 (e) (5) (27 CFR 5.39 (e) (5)) to permit truthful references of a general and informative nature relating to methods of production involving storage as to certain products, such as neutral spirits and gin, which are not entitled to bear age statements, provided they have been stored in oak containers for some specified minimum period, e. g., three months.

25. To amend section 40 (g) (27 CFR 5.40 (g)) to delete the proviso at the end of such section.

26. To amend section 45 (27 CFR 5.45) to eliminate the present requirement that an "Affidavit for Release of Distilled Spirits, Wine, or Malt Beverages Under the Federal Alcohol Administration Act" be deposited with the appropriate Customs officer at the Port of Entry before bottled distilled spirits may be released from Customs custody.

27. To amend section 46 (27 CFR 5.46) and section 51 (27 CFR 5.51) and other pertinent sections of the regulations to extend the present requirement relative to age and origin certificates, presently applicable only to Scotch, Irish, and Canadian whiskies, and Cognac, so as to authorize the Director to require certificates of origin and identity for any other imported distilled spirits.

28. To amend section 64 (c) (27 CFR 5.64 (c)) to permit truthful statements of age in advertisements of products entitled to bear an age statement, even though the labels of the advertised products do not contain any age statement.

29. To amend section 64 (c) (27 CFR 5.64 (c)) to permit general inconspicuous age, maturity, or other similar representations in advertisements for rum, if the rum has been aged for not less than 4 years, even though an age statement does not appear on the labels of the advertised product or in the advertisement itself.

30. To amend section 64 (c) (27 CFR 5.64 (c)) to permit truthful references of a general and informative nature relating to methods of production involving storage in advertisements for certain products, such as neutral spirits and gin, which are not entitled to bear age statements, provided they have been stored in oak containers for some specified minimum period, e. g., three months.

31. To amend section 73 (a) (27 CFR 5.73 (a)) to provide for additional standards of fill for distilled spirits if sufficient need for any additional size containers is disclosed at the hearing.

[SEAL] DWIGHT E. AVIS,
Director, Alcohol and Tobacco Tax Division, Internal Revenue Service.

[F. R. Doc. 56-8814; Filed, Oct. 30, 1956; 8:51 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 53]

OFFICIAL UNITED STATES STANDARDS FOR LAMB, YEARLING MUTTON, AND MUTTON CARCASSES

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given in accordance with section 4 of the Administrative Procedure Act (5 U. S. C. 1003) that the Department of Agriculture, under the provisions of sections 203 and 205 of the Agricultural Marketing Act (7 U. S. C. 1622 and 1624), as amended by Public Law 272, 84th Congress, is considering amending the official United States standards for lamb, yearling mutton, and mutton carcasses (7 CFR 53.114 et seq.).

Some of the changes proposed would make modifications in the present interpretation of the standards for some of the grades. The other changes proposed would not alter the present interpretation of the standards but are designed to make the standards more precise and